

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 845

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO MEDICAID; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-276, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING MEDICAID PRESUMPTIVE ELIGIBILITY DETERMINATIONS BY QUALIFIED HOSPITALS, TO PROVIDE PERFORMANCE STANDARDS, AND TO PROVIDE FOR VIOLATIONS, NOTICE, AND RIGHTS OF APPEAL; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 2, Title 56, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 56-276, Idaho Code, and to read as follows:

56-276. MEDICAID PRESUMPTIVE ELIGIBILITY -- QUALIFIED HOSPITAL PERFORMANCE STANDARDS -- VIOLATIONS. (1) The director shall limit presumptive eligibility determination to qualified hospitals.

(2) A hospital making a presumptive eligibility determination shall:

(a) Notify the department of each presumptive eligibility determination no later than five (5) business days after the date of the determination;

(b) Assist individuals who the hospital determines are presumptively eligible with completing and submitting a full medicaid application;

(c) Notify the applicant in writing, on all relevant forms, with plain language and in large print, that:

(i) The applicant's presumptive eligibility will end on the last day of the following month if the applicant does not file a full medicaid application with the department before the last day of the following month; and

(ii) The applicant's presumptive eligibility will continue until an eligibility determination is made by the department concerning the application if the applicant files a full medicaid application with the department before the last day of the following month; and

(d) Comply with all other regulations and standards required pursuant to subsection (3) of this section.

(3) The department shall:

(a) Establish performance standards for hospitals to use in making presumptive eligibility determinations in compliance with the requirements of subsection (2) of this section;

(b) Establish an appeals process for a hospital that disputes a determination that a presumptive eligibility standard was violated; and

(c) Use the following performance standards to establish and ensure accurate presumptive eligibility determinations by a qualified hospital:

1 (i) Determine whether each presumptive eligibility determina-
2 tion received from the hospital complied with the time requirement
3 set forth in subsection (2) of this section;

4 (ii) Determine whether the department received the full applica-
5 tion from the individual determined by the hospital to be presump-
6 tively eligible before the expiration of each presumptive eligi-
7 bility period; and

8 (iii) Determine whether each applicant who was determined by the
9 hospital to be presumptively eligible was determined to be eligi-
10 ble for medicaid after the full application was received.

11 (4) Each violation by a hospital of any of the performance standards set
12 forth in subsection (3) of this section counts as one (1) violation for the
13 presumptive eligibility determination. Each subsequent violation of a per-
14 formance standard is an additional violation for purposes of this section.

15 (5) For the first violation of a presumptive eligibility standard un-
16 der this section that a hospital receives in a calendar year, the depart-
17 ment shall notify the hospital of the violation in writing no later than five
18 (5) days after the determination of a violation is made. The notice must in-
19 clude:

20 (a) A description of the standard that was not met and an explanation of
21 why the hospital did not meet the standard;

22 (b) Notice that a second violation by the hospital of a presumptive el-
23 igibility standard will result in a requirement that the hospital's ap-
24 plicable staff participate in mandatory training on hospital presump-
25 tive eligibility rules and standards that is performed by the depart-
26 ment; and

27 (c) A description of the appeal procedures available to the hospital
28 to dispute the finding of a violation of presumptive eligibility stan-
29 dards.

30 (6) If the department determines that a hospital has failed to meet any
31 of the presumptive eligibility standards under this section in any presump-
32 tive eligibility determination by the hospital for a second time within a
33 twelve (12) month period of a first violation, the department shall notify
34 the hospital of the violation in writing no later than five (5) days after
35 the determination that a second violation has occurred. The notice must in-
36 clude:

37 (a) A description of the standard that was not met and an explanation of
38 why the hospital did not meet the standard;

39 (b) Notice that the hospital's applicable staff must participate in
40 mandatory training on hospital presumptive eligibility rules and stan-
41 dards that is performed by the department, and information concerning
42 the date, time, and location of the training;

43 (c) A description of the appeal procedures available to the hospital
44 to dispute the finding of a violation of presumptive eligibility stan-
45 dards; and

46 (d) Notice that a third violation by the hospital of a presumptive eli-
47 gibility standard within a twelve (12) month period from the second vi-
48 olation will result in the hospital no longer being qualified to make
49 presumptive eligibility determinations.

1 (7) If the department determines that a hospital has failed to meet any
2 of the presumptive eligibility standards under this section in any presump-
3 tive eligibility determination by the hospital for a third time within a
4 twelve (12) month period of the second violation by the hospital, the depart-
5 ment shall notify the hospital of the violation in writing no later than five
6 (5) days from a determination that a presumptive eligibility standard was
7 violated by the hospital for the third time. The notice shall include:

8 (a) A description of the standard that was not met and an explanation of
9 why the hospital did not meet the standard;

10 (b) A description of the appeal procedures available to the hospital
11 to dispute the finding of a violation of presumptive eligibility stan-
12 dards; and

13 (c) Notice that, effective immediately upon receipt of the notice, the
14 hospital is no longer qualified to make presumptive eligibility deter-
15 minations for the medicaid program.

16 (8) If a hospital appeals a finding of a violation of presumptive eli-
17 gibility standards set forth in subsection (3) of this section, the hospital
18 must provide clear and convincing evidence during the appeals process that
19 the standard was met by the hospital.

20 SECTION 2. An emergency existing therefor, which emergency is hereby
21 declared to exist, this act shall be in full force and effect on and after
22 July 1, 2026.